DERRICK LAMONT BEVERLY

Defendant, In Propria Persona Sui Juris

c/o 1738 N. Las Palmas Avenue

Los Angeles, California 90028

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STANLEY-MOSK SUPERIOR COURTHOUSE

OF THESTATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

JURISDICTION CENTRAL DISTRICT

FOX NORMANDIE APARTMENTS, LP,

Plaintiff,

v.

DERRICK LAMONT BEVERLY,

Defendant.

Case No.: 22STUD06657

PLEADING TITLE

- 1DEFENDANT'S EMERGENCY EX PARTE APPLICATION FOR TEMPORARY STAY OF ENFORCEMENT OF UNLAWFUL DETAINER JUDGMENT (CODE CIV. PROC. § 918);NOTICE OF MOTION AND MOTION TO VACATE DEFAULT AND DEFAULT JUDGMENT (CODE CIV. PROC. §§ 473(b), 473(d));MEMORANDA OF POINTS AND AUTHORITIES;DECLARATIONS OF DERRICK LAMONT BEVERLY;REQUEST FOR PRESERVATION OF EVIDENCE;[PROPOSED] ORDERS;EXHIBIT – DAMAGES SUMMARY CHART;AND EXHIBIT – DAMAGES AFFIDAVIT

PROOF OF SERVICE BY ELECTRONIC MAIL

(RE: EMERGENCY EX PARTE APPLICATION AND RELATED PAPERS)

I, the undersigned, declare:

1. I am over the age of 18 and am defending in this action appearing in Propria Persona Sui Juris.I am familiar with electronic mail service and have an active email account and personally sent the notice and documentation as.described below.

   My business or mailing address is:

1738 N. Las Palmas Ave.

Los Angeles, CA. 90028]

On December 3, 2025, at approximately 9:55 a.m. Pacific Standard Time, I served the following documents in the above-entitled action by electronic mail (email):

- Defendant's Emergency Ex Parte Application for Temporary Stay of Enforcement of Unlawful Detainer Judgment (Code Civ. Proc. § 918);
- Memorandum of Points and Authorities in Support of Ex Parte Application;
- Notice of Motion and Motion to Vacate Default and Default Judgment (Code Civ. Proc. §§ 473(b), 473(d));
- Memorandum of Points and Authorities in Support of Motion to Vacate;
- Declarations of Derrick LaMont Beverly (including Declaration re Notice and Merits Declaration);
- Exhibit – Damages Summary Chart;
- Exhibit – Damages Affidavit of Derrick LaMont Beverly;
- [Proposed] Order Granting Ex Parte Application for Temporary Stay of Enforcement; and
- [Proposed] Order Granting Motion to Vacate Default and Default Judgment.

2. The documents listed above were served by email in PDF format to the following recipient:

Attorney for Plaintiff

Ada R. Cordero-Sacks, Esq.

Law Offices of Ada Cordero-Sacks (LOACS)

Email: ada@loacs.com

3. The email was sent from the following email address:

   derniercrilamont@yahoo.com

   I did not receive any notice that the email was not successfully transmitted.

4. Based on prior practice in this case, including electronic service via EFSP (OneLegal), I understand that electronic mail service is reasonably calculated to give prompt notice to Plaintiff's counsel.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on December 3, 2025, at Los Angeles, California.

/s/ Derrick LaMont Beverly

Declarant, In, Propria Persona Sui Juris

NOTICE OF EX PARTE APPEARANCE AND

PROOF OF SERVICE BY ELECTRONIC MAIL

(CRC 3.1203–3.1204)

Ex Parte Hearing Date: December 3, 2025

Time: 1:30 p.m.

Department: 91

Judge: Hon. Mike H. Madokoro

I. NOTICE OF EX PARTE APPEARANCE

TO ALL PARTIES AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that Defendant DERRICK LAMONT BEVERLY, in propria persona, will appear on an emergency ex parte application on Wednesday, December 3, 2025 at 1:30 p.m., or as soon thereafter as the matter may be heard, in Department 91 of the Los Angeles Superior Court, Stanley Mosk Courthouse, 111 North Hill Street, Los Angeles, California 90012, before the Honorable Mike H. Madokoro.

Defendant seeks a temporary stay of enforcement of the unlawful detainer judgment and any writ of possession or Sheriff lockout relating to 849 S. Normandie Ave., Unit #101, Los Angeles, CA 90005, pursuant to Code of Civil Procedure § 918, together with related relief as set forth in the attached Emergency Ex Parte Application, including directions to the Los Angeles County Sheriff's Department and preservation of court and case records.

II. PROOF OF SERVICE BY ELECTRONIC MAIL

(CRC 3.1203–3.1204; Email Notice of Ex Parte)

I, DERRICK LAMONT BEVERLY, declare:

1. I am over the age of 18 and am the Defendant in this action, appearing in propria persona. I have an active email account and am familiar with the use of electronic mail.
2. On December 3, 2025, at approximately 5:45 a.m. Pacific Standard Time, I caused to be sent via electronic mail (email) a Notice of Ex Parte Application and Service of Papers in this matter to the following counsel:

   Attorney for Plaintiff

   Ada R. Cordero-Sacks, Esq.

   Law Offices of Ada Cordero-Sacks (LOACS)

Email: ada@loacs.com

3. The email advised counsel that I would be appearing today, December 3, 2025 at 1:30 p.m. in Department 91 on an emergency ex parte application in Case No. 22STUD06657, described the relief sought (a temporary stay of enforcement of the unlawful detainer judgment and related writ of possession under Code Civ. Proc. § 918), and summarized the grounds (lack of adequate notice and opportunity to be heard, current homelessness and irreparable harm, relocation issues, EFSP/OneLegal anomalies, and due-process concerns).
4. In that same email, I advised counsel that I am also filing and serving a Notice of Motion and Motion to Vacate Default and Default Judgment under Code Civ. Proc. §§ 473(b) and 473(d), and I identified the supporting documents being served with the email, including the ex parte application, memoranda of points and authorities, declarations, damages exhibits, and proposed orders.
5. The email was sent from my email account at [insert your email address] to ada@loacs.com. I did not receive any notification that the message was undeliverable or that transmission failed.
6. I provide this declaration in support of my compliance with California Rules of Court, rules 3.1203 and 3.1204, including notice of the date, time, department, relief requested, and grounds for the ex parte application.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on December 3, 2025, at Los Angeles, California.

/s/ DERRICK LAMONT BEVERLY

Digitally signed by: Derrick LaMont Beverly

Defendant, In Propria Persona Sui Juris

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